

Editor's note: (1) This section is similar to former § 42-1-215 as it existed prior to 1994, and the former § 42-1-217 was relocated to § 42-1-218.

(2) Subsection (4)(b)(II) provided for the repeal of subsection (4)(b), effective July 1, 2008. (See L. 2007, p. 1114.)

Cross references: For costs levied on traffic offenses pursuant to the "Colorado Crime Victim Compensation Act", see § 24-4.1-119; for costs levied on alcohol- and drug-related traffic offenses, see §§ 42-4-1301.3 (4)(a), 42-4-1301.4 (5), 42-4-1307, and 43-4-402; for establishment of the victims and witnesses assistance and law enforcement fund and the authority for levying of surcharges, see §§ 24-4.2-103 and 24-4.2-104.

42-1-218. Revocations and suspensions of licenses published. (Repealed)

Source: L. 94: Entire title amended with relocations, p. 2113, § 1, effective January 1, 1995. L. 2007: Entire section repealed, p. 30, § 4, effective August 3.

42-1-218.5. Electronic hearings. (1) Notwithstanding any other provision of this title to the contrary, at the discretion of the department, any hearing held by the department pursuant to this title may be conducted in whole or in part, in real time, by telephone or other electronic means.

(2) The general assembly recognizes that there is an increase in the number of hearings conducted by the department; that a licensee has the right to appear in person at a hearing; and that a licensee or a law enforcement officer may not be able to appear in person at a hearing. The general assembly therefore directs the department to consider the circumstances of the licensee when a licensee requests to appear in person, and grant the request whenever possible. The general assembly further directs the department to consider the circumstances of the licensee and the law enforcement officer when either may not be able to appear in person, and allow the appearance by electronic means whenever possible.

(3) and (4) Repealed.

Source: L. 2001: Entire section added, p. 552, § 2, effective May 23. L. 2003: (3) and (4) repealed, p. 2620, § 2, effective June 5.

42-1-219. Appropriations for administration of title. The general assembly shall make appropriations for the expenses of administration of this title.

Source: L. 94: Entire title amended with relocations, p. 2113, § 1, effective January 1, 1995.

Editor's note: This section is similar to former § 42-1-218 as it existed prior to 1994.

42-1-220. Identification security fund - repeal. (Repealed)

Source: L. 2001: Entire section added, p. 940, § 5, effective July 1. L. 2002: (1) amended, p. 535, § 1, effective May 24. L. 2006: (2) and (3) amended, p. 656, § 2, effective

April 24. **L. 2009:** (3) amended, (SB 09-025), ch. 266, p. 1215, § 1, effective July 1. **L. 2014:** (1) amended and (2) repealed, (SB 14-194), ch. 346, p. 1542, § 4, effective June 5.

Editor's note: Subsection (3) provided for the repeal of this section, effective July 1, 2014. (See L. 2009, p. 1215.)

42-1-221. Fuel piracy computer reprogramming cash fund - repeal. (Repealed)

Source: L. 2002: Entire section added, p. 1132, § 3, effective July 1.

Editor's note: Subsection (3) provided for the repeal of this section, effective July 1, 2003. (See L. 2002, p. 1132.)

42-1-222. Motor vehicle investigations unit. The department shall establish a motor vehicle investigations unit to investigate and prevent fraud concerning the use of driver's licenses, identification cards, motor vehicle titles and registrations, and other motor vehicle documents issued by the department. Such unit shall also assist victims of identity theft by means of such documents.

Source: L. 2004: Entire section added, p. 1736, § 1, effective July 1.

42-1-223. Monitoring driving improvement schools - fund - rules - repeal. (Repealed)

Source: L. 2009: Entire section added, (HB 09-1246), ch. 346, p. 1811, § 1, effective August 5. **L. 2014:** (1) to (3) repealed and (4) and (5) added, (HB 14-1228), ch. 337, p. 1501, § 1, effective June 5.

Editor's note: Subsection (5) provided for the repeal of this section, effective July 1, 2015. (See L. 2014, p. 1501.)

42-1-224. Record check. (1) The department may submit fingerprints of an employee or prospective employee to the Colorado bureau of investigation to obtain a fingerprint-based criminal history record check if the employee's duties do or will provide them with access to Colorado driver's licenses and identification cards issued pursuant to article 2 of this title 42 or personal identifying information collected or stored by the department in order to issue driver's licenses or identification cards. The department of revenue shall require all such employees hired on or after April 15, 2010, to obtain a fingerprint-based criminal history record check prior to performing their official duties, and shall require all such employees hired before April 15, 2010, to obtain a fingerprint-based criminal history record check by July 1, 2011. The department may use this information to make employment decisions concerning such employees. Upon receipt of fingerprints and payment for the costs, the Colorado bureau of investigation shall conduct a state and national fingerprint-based criminal history record check utilizing records of the Colorado bureau of investigation and the federal bureau of investigation. The department shall be the authorized agency to receive information regarding the result of the national criminal history

record check. The Colorado bureau of investigation shall charge the department a fee for record checks conducted pursuant to this section. The Colorado bureau of investigation shall set such fee at a level sufficient to cover the direct and indirect costs of processing requests made pursuant to this section. Money collected by the bureau pursuant to this section is subject to annual appropriation by the general assembly for the administration of this section.

(2) When the results of a fingerprint-based criminal history record check of a person performed pursuant to this section reveal a record of arrest without a disposition, the department shall require the person to submit to a name-based judicial record check, as defined in section 22-2-119.3 (6)(d). The department shall pay the costs associated with a name-based judicial record check.

Source: **L. 2010:** Entire section added, (HB 10-1011), ch. 110, p. 367, § 1, effective April 15. **L. 2019:** Entire section amended, (HB 19-1166), ch. 125, p. 558, § 51, effective April 18. **L. 2022:** (2) amended, (HB 22-1270), ch. 114, p. 534, § 55, effective April 21.

42-1-225. Commercial vehicle enterprise tax fund - creation - repeal. (1) (a) The commercial vehicle enterprise tax fund is hereby created in the state treasury.

(b) (I) Prior to July 1, 2025, the fund consists of money collected and transmitted to the fund pursuant to section 42-4-1701 (4)(a)(II). The general assembly shall annually appropriate the money in the fund to cover the actual cost of administering sections 39-26-113.5 and 39-30-104 (1)(b). Money in the fund is continuously appropriated to the department of revenue for the payment of sales and use tax refunds pursuant to section 39-26-113.5. After receiving the statement pursuant to section 39-30-104 (1)(b)(VI), the state treasurer shall credit the total cost of the amount of the tax credits stated therein to the general fund.

(II) This subsection (1)(b) is repealed, effective July 1, 2026.

(c) On or after July 1, 2025, the fund consists of money collected and transmitted to the fund pursuant to section 42-4-1701 (4)(a)(II). The general assembly shall annually appropriate the money in the fund to cover the actual cost of administering section 39-30-104 (1)(b). After receiving the statement pursuant to section 39-30-104 (1)(b)(VI), the state treasurer shall credit the total cost of the amount of the tax credits stated therein to the general fund. Any money remaining in the commercial vehicle enterprise tax fund at the end of the fiscal year shall not revert to the general fund.

(2) (a) (I) On July 1, 2011, and each July 1 thereafter through July 1, 2024, the department shall allocate one-third of the fund balance, not including the amount appropriated to cover the actual cost of administering sections 39-26-113.5 and 39-30-104 (1)(b), to make the sales tax refunds granted in section 39-26-113.5.

(II) This subsection (2)(a) is repealed, effective July 1, 2025.

(b) (I) On July 1, 2011, and each July 1 thereafter through July 1, 2024, the department shall allocate two-thirds of the fund balance, not including the amount appropriated to cover the actual cost of administering sections 39-26-113.5 and 39-30-104 (1)(b), to offset the income tax credit granted in section 39-30-104 (1)(b).

(II) This subsection (2)(b) is repealed, effective July 1, 2025.

(c) On July 1, 2025, and each July 1 thereafter, the department shall allocate the fund balance, not including the amount appropriated to cover the actual cost of administering section 39-30-104 (1)(b), to offset the income tax credit granted in section 39-30-104 (1)(b).